

PROPOSED REGULATION TEXT

Covered Battery-Embedded Waste Recycling Fee Materials Management and Local Assistance Division

DEPARTMENT OF RESOURCES RECYCLING AND RECOVERY CALIFORNIA CODE OF REGULATIONS

Note: Amendments are shown in underline to indicate additions and ~~strikeout~~ to indicate deletions from the existing regulatory text.

TITLE 14

DIVISION 7

CHAPTER 8.2. Electronic Waste Recovery and Recycling

AMEND

ARTICLE 2.6

Amend Section 18660.40, California Code of Regulations, title 14

ARTICLE 2.6: Covered Electronic Waste Recycling Fee

Section 18660.40. Fee Amounts.

The covered electronic waste recycling fee paid by a consumer upon the purchase of a new or refurbished covered electronic device pursuant to Section 42464 of the Public Resources Code shall be the following amounts:

- (a) On or after January 1, 2026, four dollars (\$4), for each covered electronic device with a screen size of less than 15 inches measured diagonally.
 - (b) On or after January 1, 2026, five dollars (\$5), for each covered electronic device with a screen size greater than or equal to 15 inches but less than 35 inches measured diagonally.
 - (c) On or after January 1, 2026, six dollars (\$6), for each covered electronic device with a screen size greater than or equal to 35 inches measured diagonally.
 - (d) On or after January 1, ~~2026~~2027, 1.5 percent of the retail sales price for each covered battery-embedded product sold for use in this state by a retailer. The covered battery-embedded waste recycling fee shall not exceed ~~\$15.00~~1.00. For the purposes of this Section, "retail sales price" shall have the same meaning as "sales price" in Section 6011 of the Revenue and Taxation Code.
- (1) There is a rebuttable presumption that a covered battery-embedded product is purchased for use in this state if either of the following is true:

- (A) The covered battery-embedded product is purchased from a retailer physically located in this state.
- (B) The address to which the retailer ships the purchased covered battery-embedded product is located in this state.
- (2) This Section applies to the purchase of covered battery-embedded products only. It does not apply to any determination regarding whether Covered Electronic Waste (CEW) is generated from a California Source.

NOTE: Authority cited: Sections 40502 and 42475.2, Public Resources Code.
Reference: Sections 42464, 42464.2 and 42464.4, Public Resources Code.